

25CV05051 Svetlana-Leonidovna Dayal vs Joseph E Holland

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-06-26

Motion: Writ of Mandate

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Tentative Ruling: Svetlana-Leonidovna Dayal vs Joseph E Holland

Case Number

25CV05051

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 06/26/2026 - 10:00

Nature of Proceedings

Writ of Mandate

Tentative Ruling

For the reasons set forth herein, the petition of petitioner Svetlana-Leonidovna Dayal for issuance of a writ of mandate is denied.

Background:

On August 14, 2025, petitioner Svetlana-Leonidovna Dayal filed a petition for writ of mandate to compel respondent Joseph E. Holland, in his capacity as Santa Barbara Clerk-Recorder, to record certain instruments.

On September 18, 2025, respondent filed an answer to the petition, generally denying the allegations thereof and asserting 10 affirmative defenses.

On November 12, 2025, petitioner filed a motion to set a hearing on the petition for writ of mandate.

On March 20, 2025, the court granted petitioner's motion to set a hearing. Petitioner was present at this hearing. (Minute Order, filed Mar. 20, 2026, p. 1.) The court ordered respondent to lodge the administrative record with the court on or before April 24, 2026, and to serve that record on the petitioner. Petitioner was ordered to file and serve a supporting memorandum, and all records and evidence on which petitioner relies in support of the petition, on or before May 8, 2026. Respondent was ordered to file and serve opposition to the petition on or before May 22, 2026. Petitioner was then permitted to file and serve any reply to that opposition on or before May 29, 2026.

On April 22, 2026, respondent lodged with the court, and served on petitioner, the administrative record, and filed and served notice of such lodging and a certification of such administrative record.

On May 21, 2026, respondent filed and served, "Respondent's Answer to Petition for Writ of Mandate; Declaration of Melinda Greene in Support Thereof."

Petitioner did not file any memorandum in support, any reply, or any other document with the court after the court set the hearing on the petition for writ.

Analysis:

In granting petitioner's motion to set this hearing, the court set a briefing schedule for the filing of a memorandum in support. Respondent timely complied with this court's order by lodging the administrative record with the court and serving the record on petitioner.

A court may require the filing of a memorandum in support of a petition. (Cal. Rules of Court, rule 3.1114(b).) Such a memorandum must comply with California Rules of Court, rule 3.1113. (Ibid.) The court may construe the absence of a memorandum as an admission that the petition is not meritorious and a cause for its denial (Cal. Rules of Court, rule 3.1113(a).)

Because the court provided a briefing schedule requiring a memorandum in support of the petition to be filed in advance of this hearing, petitioner was present at the hearing at which the court made the order requiring a memorandum in support be filed according to the briefing schedule, and petitioner did not file a memorandum, the court deems the absence of a memorandum in support as an admission that the petition is not meritorious and a cause for its denial.

Accordingly, the petition will be denied.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

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